		never occurred because the parties never discussed fees or price, let alone agreed on them. In the opposition, plaintiffs contend that this does not matter because the price term is provided by law, i.e., under the Knox-Keene Act and regulations, and is the "reasonable and customary value for those services, citing Children's Hospital Cent. Cal. v. Blue Cross of California (2014) 226 Cal.App.4th 1260, 1274. Plaintiffs' reliance on Children's Hospital Cent. Cal. v. Blue Cross of California, supra, 226 Cal.App.4th at p. 1274 is misplaced. Although the case confirms that the regulations direct a noncontracted party to pay the reasonable and customary value of their services, it states that this directive "embodies the concept of quantum meruit." The case further states: > "Quantum meruit refers to the well-established principle that 'the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered.' " [Citation.] The measure of recovery in quantum meruit is the reasonable value of the services, provided they were of direct benefit to the defendant. [Citation.] The burden is on the person making the quantum meruit claim to show the value of the services. [Citation.] Children's Hospital Cent. Cal. v. Blue Cross of California, supra, 226 Cal.App.4th at p.1274. The more recent case of Allied Anesthesia Medical Group, Inc. v. Inland Empire Health Plan (2022) 80 Cal.App.5th 794, 810, which is cited by defendants in the moving and reply papers, is more on point. It specifically rejected the argument being made by plaintiffs here, stating:

> We reject plaintiffs' claim that they need not plead a "meeting of the minds" on the rate at which they would be compensated because they are not demanding payment above the rate set by regulation 1300.71. [Citation.] To do otherwise would allow plaintiffs to play fast and loose with their theories of liability. A claim for breach of an implied-in-fact contract requires plaintiffs to plead the agreed-upon rate. Otherwise, their allegations amount to a claim for quantum meruit in which they seek to recover the shortfall in the amount of their reimbursement based on the belief that the rate at which they were paid is below the reasonable and customary value of the services they provided. [Citation.]

Based on this legal authority, the cause of action for breach of implied-in-fact contract is deficient. The demurrer to the second cause of action is sustained with 20 days leave to amend.

<u>Third cause of action for violation of the UCL.</u>

Business and Professions Code section 17200 et seq. prohibits unfair competition, including unlawful, unfair, and fraudulent business acts. Aton Center, Inc. v. United Healthcare Ins. Co., supra, 93 Cal.App.5th 1216, 1247. The UCL covers a wide range of conduct and embraces anything that can properly be called a business practice and that at the same time is forbidden by law. Ibid. The UCL is written in the disjunctive and establishes three varieties of unfair competition, i.e., acts or practices which are unlawful, or unfair, or fraudulent. Id. at p. 1248. An act can be alleged to violate any or all of the three prongs of the UCL—unlawful, unfair, or fraudulent. Ibid.

		Only equitable relief can be obtained under the UCL; damages are not recoverable. Aton Center, Inc. v. United Healthcare Ins. Co., supra, 93 Cal.App.5th 1216, 1247. Moreover, a plaintiff may only seek equitable relief under California's UCL where he or she has no adequate remedy at law. Moss v. Infinity Ins. Co. (N.D. Cal. 2016) 197 F.Supp.3d 1191, 1203. Where the plaintiff can seek money damages if he or she prevails on claims for breach of contract or breach of the implied covenant of good faith and fair dealing, he or she has an adequate remedy at law. Ibid. This is true even if all of the plaintiff's non-UCL claims ultimately fail. Ibid. Here, after alleging that defendant engaged in unlawful, unfair, or fraudulent conduct, plaintiffs allege: > As a direct and proximate result of [defendant's] wrongful acts, [plaintiffs] have suffered and will continue to suffer substantial pecuniary losses and irreparable injury-in-fact. Under California Business & Professions Code § 17200, said violations render [defendant] liable to the [plaintiffs] for injunctive relief as ordered by this court as necessary to restore to the [plaintiffs] all money which [defendant] acquired by means of such unfair business practices in an amount according to proof as trial. (Complaint, ¶ 62.) Defendant essentially contends that the request for injunctive relief is illusory and does not amount to anything more than a claim in quantum meruit, citing Long Beach Memorial Medical Center v. Kaiser Foundation Health Plan, Inc. (2021) 71 Cal.App.5th 323, 343. Plaintiffs disagree,

		contending that defendant’s cited authority is distinguishable because injunctive relief sought in that case related to payments in the future and they are really seeking disgorgement or restitution of money retained by defendant. In fact, Long Beach Memorial Medical Center v. Kaiser Foundation Health Plan, Inc., supra, 71 Cal.App.5th 323, 343 stated that the healthcare providers there sought injunctive relief enjoining the defendant from violating the Knox-Keene Act by underpaying for emergency medical services in the future and that such relief was unavailable because defendant could not determine the reasonable and customary value of the services rendered until that amount was determined by a jury. The court stated that the plaintiffs could properly seek restitution for defendant’s violation of its duty under the Knox-Keene Act “to reimburse them for the ‘reasonable and customary value’ of the emergency medical services they provided to [defendant’s] enrollees, but that restitutionary award is indistinguishable from the award they would receive through their quantum meruit claim.” Ibid. The demurrer to the third cause of action is sustained with 20 days leave to amend. Counsel for the parties are reminded and directed to follow the Code of Civil Procedure and California Rules of Court when drafting and submitting pleadings and documents. For example, a demurrer should comply with CRC 3.1320(a) by setting forth each ground of the demurrer and indicating whether the ground applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses. Argument properly belongs in the supporting memorandum of points and authorities. See CRC 3.1113(b).

		RULING ON MOTION #2: To the extent that the motion to strike is not mooted by the ruling on the demurrer, it is denied for failure to comply with CRC 3.1322(a). ("A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.") Defendant is to provide notice of both rulings.
61	***Vasquez vs. American Honda Motor Company, Inc.***	Defendant American Honda Motor Company, Inc.'s motion to compel plaintiff Jesse Vasquez to appear for deposition pursuant to Code of Civil Procedure section 2025.450 is DENIED, except that Plaintiff is ordered to provide within 30 days of the notice of ruling, four alternative dates within the next 60 days for the Plaintiff's deposition. Code of Civil Procedure section 2025.450 provides that a party noticing a deposition "may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice" if, "after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice." Code Civ. Proc. § 2025.450(a). Pursuant to Code of Civil Procedure section 2025.410, subdivision (a), a party "served with a